

2.3.6 Ensuring uniform application of the law

In order to be admissible, the referred question must either concern a non-uniform application of the law by the boards or, alternatively, a point of law of fundamental importance (see in this chapter V.B.2.3.7). According to Art. 112 EPC, this requirement concerns not only referrals by a board but also referrals by the President, which, however, must in any case concern "different decisions" of the boards (see in this chapter V.B.2.4.3).

In T.154/04 (OJ 2008, 46) the board found that deviating from an opinion given in another decision of a board of appeal or a deviation from national jurisprudence are not per se valid reasons for referral under Art. 112(1)(a) EPC. According to the board, the legal system of the EPC allows for the evolution of the case law, which is not case law in the Anglo-Saxon meaning of the term. In T.15/01 (OJ 2006, 153) the board did not consider a referral to the Enlarged Board necessary, because only one previous decision of the boards deviated from its own conclusion as to the exhaustion of priority rights. In T.248/88 the board also held that a single and isolated non-uniform decision did not qualify under Art. 112(1)(a) EPC.

In T.712/10 the board stated that the Enlarged Board does not have the power to ensure uniform application of the law between the boards of appeal and national courts. However, a lack of uniformity between the law as applied by the boards of appeal and national courts could, in theory, bring to the fore a point of law of fundamental importance.

In T.2477/12 the board held that the application of the same legal principles and criteria may lead to different results in different cases. This is a consequence of the specific facts of each individual case and not, however, an indication of a contradictory interpretation or an inconsistent application of the law.

In G.1/12 (OJ 2014, A114), the Enlarged Board considered the requirement of non-uniform application of the law to be fulfilled because some decisions allowed deficiencies in the appellant's name to be remedied under R.101(2) EPC, whereas in other decisions on analogous situations the boards applied R.139 EPC. A minority of the members of the Enlarged Board were of the opinion that this merely demonstrated that, as long as the removal of the deficiency did not lead to a change of the appellant's true identity, both procedures were available according to consistent case law.

2.3.7 Point of law of fundamental importance

The requirement that the referred question must either concern a lack of uniform application of the law by the boards or a point of law of fundamental importance concerns both referrals by a board and referrals by the President (see in this chapter V.B.2.4.1).

G.1/12 (OJ 2014, A114) concerned the correction of errors regarding the identity of the appellant and, in this context, the admissibility of an appeal. The Enlarged Board held that the referred question related to a "point of law of fundamental importance" because it was relevant to a large number of similar cases (see also T.271/85, OJ 1988, 341, T.1242/04, OJ 2007, 421 and T.1676/08: "a substantial number of similar cases") and was therefore

of great interest not only to the parties to the specific appeal proceedings in question (see also T 590/18 of 4 July 2018). Settling this point of law was important not only to the users of the European patent system but also to the boards of appeal and the department of first instance in examination and opposition proceedings. A minority of the members of the Enlarged Board disagreed and considered the referral inadmissible. According to the minority, the majority's view implied that "importance" within the meaning of Art. 112 EPC was nothing more than mere relevance. The number of cases affected, however, was neither a suitable nor an appropriate criterion for establishing the admissibility of a referral. In G 1/13 (OJ 2015, A42), the Enlarged Board confirmed the view of the majority in G 1/12.

In T 26/88 (OJ 1991, 30) the board held that a question was not sufficiently important when the legal framework upon which the question was based (here: R. 58(5) EPC 1973) had changed in the interim and the question was therefore unlikely to arise again very often. Similarly, in T 2459/12, the board stated that a question regarding a point of law the answer to which would affect only a relatively small number of applicants for a limited period of time, after which it would become obsolete (here: due to an amendment to R. 164 EPC), was not a question relating to a point of law of fundamental importance.

The lack of case law on a particular issue is in itself not a sufficient reason to refer a question to the Enlarged Board (T 998/99). In G 1/19 the Enlarged Board held that the requirement of fundamental importance was fulfilled despite the small number of board decisions in the field of the application in suit. It added that in an unknown number of cases, the issues at play in the underlying appeal had been avoided through claim drafting techniques; the referred questions could also be pertinent for these cases.

In J 5/81 (OJ 1982, 155) the appellant requested the referral of a question which the board considered an important point of law. The board refused the appellant's request regardless, as the question could be answered by reference to the EPC without doubt (see also, for example, J 14/91, OJ 1993, 479; T 1196/08; T 1676/08; T 2477/12). In T 39/05, the board already denied the existence of an important point of law if a question could be answered by reference to the EPC without doubt.

In J 10/15 the Legal Board was of the opinion that the legal situation in the case in hand was clearly to be derived from the EPC and the PCT, so that there was no question of law of fundamental importance which could justify a referral to the Enlarged Board of Appeal.

2.4. Referral by the President of the EPO

2.4.1 General

Under Art. 112(1)(b) EPC, in order to ensure uniform application of the law (see in this chapter V.B.2.3.6) or if a point of law of fundamental importance (see in this chapter V.B.2.3.7) arises, the President of the EPO may refer a point of law to the Enlarged Board "where two boards of appeal have given different decisions on that question".

2.4.2 Discretion of the President

Under Art. 112(1)(b) EPC, the President of the EPO *may* refer a point of law and is entitled to make full use of the discretion granted by Art. 112(1)(b) EPC. His appreciation of the need for a referral may change even after a relatively short time, for example because his assessment of the case law of the Boards of Appeal has changed, or a change in the presidency has taken place (G 3/08, OJ 2011, 10).

2.4.3 Differing decisions

In G 3/08 (OJ 2011, 10) the Enlarged Board found that the terms "different/abweichende/divergentes" decisions in Art. 112(1)(b) EPC had to be interpreted in the light of the provision's object and purpose according to Art. 31 of the Vienna Convention on the Law of Treaties. The purpose of the presidential referral right under Art. 112(1)(b) EPC is to establish uniformity of law within the European patent system. Having regard to this purpose, the notion "different decisions" has to be understood restrictively in the sense of "conflicting decisions". Legal development is an additional factor which must be carefully considered. Development of the law is an essential aspect of its application and inherent in all judicial activity. Consequently, legal development as such cannot on its own form the basis for a referral, because case law does not always develop in linear fashion, and earlier approaches may be abandoned or modified. See also G 3/19.

Legal rulings are characterised not by their verdicts, but by their grounds. The Enlarged Board of Appeal may thus take obiter dicta into account in examining whether two decisions satisfy the requirements of Art. 112(1)(b) EPC (see also G 3/93, OJ 1995, 18).

In G 4/98 (OJ 2001, 131) the Enlarged Board held that a discrepancy between Office practice of the EPO and the case law of the boards of appeal was not in itself sufficient to justify a referral by the President, if the practice of the EPO was not warranted by the case law.

In G 3/95 (OJ 1996, 169) the Enlarged Board considered the President's referral inadmissible due to the absence of different, i.e. conflicting decisions. In G 3/08 (concerning Art. 52(2) EPC, computer programs), the Enlarged Board said that T 424/03 indeed deviated from T 1173/97, but that this was a legitimate development of the case law and that there was no divergence which would make the referral admissible.

In T 646/13 the board, with reference to G 3/08, rejected the request for a referral to the Enlarged Board, finding that alleged contradictions between decisions T 464/05 and T 1811/13 did not exist. Rather, in the board's view, these decisions illustrated a development of the case law on a particular question.

2.4.4 Two boards of appeal

Different decisions by a single technical board in differing compositions may be the basis of an admissible referral by the President (G 3/08, OJ 2011, 10). In G 1/04 (OJ 2006, 334),

the Enlarged Board found the President's referral, based on two different decisions of the same technical board of appeal, admissible and stressed that the decisions were rendered by the board in completely different compositions and that other technical boards had adopted the findings of one of the conflicting decisions.

In G 4/98 (OJ 2001, 131) the Enlarged Board stated that if the President's power of referral were to be defined by a restrictive reading of "two Boards of Appeal", no referrals would be possible with respect to the Legal Board of Appeal. This would unduly restrict the effect of Art. 112 EPC, since conflicting decisions could also occur within that board. See also G 3/19.

2.5. Procedural issues

2.5.1 Question already decided by the Enlarged Board

Should a board consider it necessary to deviate from an earlier opinion or decision of the Enlarged Board, the question must be referred to the Enlarged Board (Art. 21 RPBA 2020).

In T 297/88 the board examined under which circumstances it was possible to re-refer a question which had already been decided by the Enlarged Board. It took the view that a board may only refer the same point of law another time to the Enlarged Board if the Enlarged Board's arguments were so weak that doubts as to the correctness of the decision were unavoidable. This was also the case where the arguments were based on a false premise so that there were doubts about the conclusion drawn. Finally, a decision of the Enlarged Board could also be questioned where the premise was correct, the arguments were conclusive and the conclusion therefore also correct, but where legal or technical developments occurring in the interim made it desirable in the public interest to have the question reviewed again by the Enlarged Board.

In T 82/93 (OJ 1996, 274; see also T 80/05, T 1213/05) the board rejected the requested referral because the question had already been decided by the Enlarged Board.

In T 1063/18 the board decided that R. 28(2) EPC was in conflict with Art. 53(b) EPC as interpreted by the Enlarged Board in G 2/12 and G 2/13 and saw no reason to deviate from the Enlarged Board's interpretation of Art. 53(b) EPC. Furthermore, the board stated that no point of law arises in relation to the course of action in case of a conflict between a Rule of the Implementing Regulations and an Article of the Convention because this situation is governed by Art. 164(2) EPC. For these reasons the board decided a referral under Art. 112(1)(a) EPC was not justified.

In G 9/93 (OJ 1994, 891), the Enlarged Board confirmed the referring board's view that the concept of opposition proceedings set out in G 1/84 differed fundamentally from that in G 9/91 and G 10/91, which it endorsed.

2.5.2 Question already pending before the Enlarged Board

In T 208/88 of 20 July 1988 the board referred a question already pending once again to the Enlarged Board, because new aspects had emerged which it deemed useful for the Enlarged Board's decision. The same questions, supplemented by an additional question, were also referred again in J 15/90 of 4 September 1992 (see also T 83/05 of 8 July 2013), because the board wished to give the Enlarged Board the opportunity to consider another type of case. In T 803/93 (OJ 1996, 204) the board complemented the questions already pending and said that important questions of law should, if possible, be considered in the context of proceedings involving parties having opposing interests in relation to these questions. In T 184/91 of 25 October 1991 the President of the EPO had referred questions to the Enlarged Board. The board referred the already pending questions again, stating that nothing prevented a board from reiterating questions that are pending, in order that the parties to an appeal may enjoy being parties to the proceedings before the Enlarged Board. In T 1553/13 of 20 February 2014 and T 2017/12 of 24 February 2014 two different technical boards referred an almost identical question to the Enlarged Board.

2.5.3 Stay of first instance proceedings following a referral

In T 166/84 (OJ 1984, 489) the board stated that, in its opinion, where a decision of the examining division depended entirely on the outcome of proceedings before the Enlarged Board of Appeal on a legal question raised under Art. 112 EPC 1973 – and this was known to the examining division – the further examination of the application must be suspended until the matter was decided by the Enlarged Board of Appeal. Failure to do so would amount to a substantial procedural violation under R. 67 EPC 1973 (R. 103(1)(a) EPC).

When G 3/14 (concerning clarity objections in opposition proceedings) was pending before the Enlarged Board, the President of the EPO decided that all proceedings before the opposition divisions where the decision depended entirely on the outcome of the Enlarged Board's decision were to be stayed ex officio, thereby superseding the then general practice under the guidelines to stay proceedings only upon request of a party (notice from the EPO dated 7 August 2014 concerning the staying of proceedings due to referral G 3/14, OJ 2014, A87, see also notice from the EPO dated 2 October 2015 concerning the staying of proceedings due to referral G 1/15).

According to the Guidelines for Examination (E-VII, 3 – November 2018 version), where the outcome of examination or opposition proceedings depends entirely on the answer to questions referred to the Enlarged Board, the proceedings *may* be stayed by the examining or opposition division on its own initiative or on request of a party. Under a previous version of the guidelines (E-VI, 3 – September 2013 version), the proceedings were to be stayed "only upon request of at least one of the parties" (see also notice from the EPO dated 1 September 2006 concerning staying of proceedings, OJ 2006, 538).